



U.S. Department
of Transportation

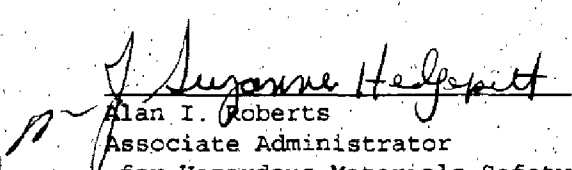
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9990 (PTE)
FIRST REVISION July 7, 1994

In accordance with 49 CFR 107.111 of the Department of Transportation (DOT) Hazardous Materials Regulations the party(ies) listed below is granted the status of party to DOT-E 9990. The expiration date of the exemption for the party(ies) is April 30, 1996.

This party status applies to the party(ies) listed below based on the application(s) submitted in accordance with 49 CFR 107.111 and the public proceeding thereon. All terms of the exemption remain unchanged. This authorization forms part of the exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT 31 1994

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Olin Ordnance
Downey, CA

July 25, 1994

GenCorp Aerojet Ordnance
Chino Hills, CA

August 9, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DOT-E 9990
(FIRST REVISION)

1. Alliant Tech Systems, New Brighton, Minnesota, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of fuzes detonating for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of fuzes detonating, Division 1.4D explosives, in a packaging not authorized in 49 CFR, and provides no relief from any regulation other than as specifically stated. NOTE: Reference to 49 CFR Sections in this exemption are to regulations in effect on September 30 1991.

2. BASIS. This exemption is based on an application from Honeywell dated April 27, 1994, submitted in accordance with 49 CFR 107.105.

3. HAZARDOUS MATERIALS (Descriptor and class). Fuzes, detonating; Division 1.4D.

4. PROPER SHIPPING NAME (49 CFR 172.101). Fuzes, detonating; Division 1.4D, UN0410.

5. REGULATION AFFECTED. 49 CFR 173.113.

6. MODE OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a pallet size fiberboard packaging 48" x 40" x 40" containing 4 separate liner-type columns each with 12 trays containing fuzes, detonating. Outer box and columns must be constructed of corrugated fiberboard of at least 275 pound test. Not more than 2,352 fuzes may be placed in the package which is shrink-wrapped in accordance with the drawings and photographs included in the application. Completed box, prepared as for shipment, must be capable of satisfactorily withstanding vibration and countermining tests described in petitioner's application.

8. SPECIAL PROVISIONS.

a. NO NEW CONSTRUCTION OF THE PACKAGING IDENTIFIED IN PARAGRAPH 7 OF THIS EXEMPTION IS AUTHORIZED AFTER SEPTEMBER 30, 1994. AS THE HOLDER OF THIS EXEMPTION, YOU MAY REQUEST A RENEWAL TO CONTINUE THE USE OF THE PACKAGING MANUFACTURED PRIOR TO SEPTEMBER 30, 1994. HOWEVER, THE EXEMPTION WILL

NOT CARRY AN EXPIRATION DATE SUBSEQUENT TO SEPTEMBER 30, 1996 SINCE USE OF THE PACKAGING IS PROHIBITED AFTER THAT DATE. THIS IS CONSISTENT WITH THE TRANSITIONAL PROVISIONS OF 49 CFR SECTION 171.14 AND THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181.

b. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

c. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

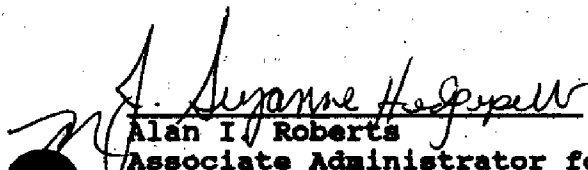
d. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

e. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

9. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder (s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

10. EXPIRATION DATE. April 30, 1996.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

JUL -7 1994

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Program.

The original of this exemptions is on file at the above office. Photo reproductions and legible reductions of this exemptions are permitted. Any alteration of this exemptions is prohibited.

Dist: FHWA